

Court No. - 3

Case :- WRIT - C No. - 1916 of 2023

Petitioner :- M/S Munna Kashmiri Cold Storage Pvt. Ltd.
Unnao Thru. Director Mohd. Yusuf Khan

Respondent :- Madhyanchal Vidhyut Vitran Nigam Ltd. Thru.
Chairman And Others

Counsel for Petitioner :- Syed Ali Rehan

Counsel for Respondent :- Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Manish Kumar,J.

Heard.

Present petition has been filed with the following main prayers:-

"i. Issue a writ, order or direction in the nature of Certiorari quashing the impugned demand notice for recovery dated 11.03.2022 issued by Executive Engineer, Vidhyut Vitran Khand-I, Madhyanchal Vidhyut Vitran Nigam Limited, EDSD-I Unnao-III, Purwa, Unnao (Opposite party no. 2) against the petitioner for recovery of electricity dues for an amount of Rs. 10,71,849 (Ten Lac Seventy One Thousand Eight Hundred and Forty Nine) which is much excess to the electricity consumed at the premises of the petitioner and is in pursuance to a disputed electricity bill, the said impugned demand notice for Recovery is contained as Annexure no. 1 to this writ petition.

ii. Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties no. 2 and 3 to accept the correct bill amount of the petitioner after setting aside the impugned demand notice for recovery for disputed/incorrect bill which had been issued to the petitioner as also not to take any coercive steps against the petitioner in pursuance of demand notice for recovery dated 11.03.2022, as also restore the electricity connection of the Petitioner's cold storage namely M/s Munna Kashmiri Cold Storage Pvt. Ltd., situated at Purwa, District Unnao.

iii. Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties (no-2 and 3) to accept the entire correct electricity bill amount due on the petitioner as provided under the Uttar Pradesh Electricity Supply Code, 2005."

Learned counsel for the petitioner has submitted that the

petitioner's Cold Storage is running since long in Tehsil Purwa, district Unnao in the name and style of *M/s Munna Kashmiri Cold Storage Pvt. Ltd.* Petitioner had a valid electricity connection and he had been paying the electricity bill regularly every month without any default or delay. Suddenly, the electricity connection of the petitioner has been disconnected issuing Recovery Certificate of Rs. 10,71,849/-, which is to be deposited by the petitioner.

On the other hand, learned Standing Counsel has submitted that petitioner has remedy to approach the competent authority/Executive Engineer under Para 6.5 of the Electricity Supply Code, 2005 for redressal of its grievances.

In view of the above, the present writ petition is ***disposed of*** with a direction to the petitioner to approach the competent authority/Executive Engineer concerned within a period of one week from today, who shall decide the matter in the light of the 6.5 B of the Code, 2005. If such a representation is made by the petitioner within the time as mentioned above, the competent authority shall decide the same within a period of two weeks, thereafter.

If the petitioner deposits the amount mentioned in the recovery certificate under protest, electricity connection of the petitioner will be restored forthwith.

Order Date :- 14.3.2023

Ashish